

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
GERARDO AGUILERA,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and P.O. NICHOLAS
VANDYKE OF THE 47TH PCT, SHIELD #: 11503
and P.O. MATHEW VINZO OF THE 47TH PCT,
SHIELD # 31313,Defendant(s).
-----XIndex No.: 28067/2017E
Date Purchased: 8/28/17**AMENDED**
VERIFIED COMPLAINT**AS AND FOR A FIRST CAUSE OF ACTION**

Plaintiff, by his attorneys, GETZ & BRAVERMAN, P.C., complaining of the Defendants,
respectfully alleges, upon information and belief:

1. At the time of the commencement of this action, Plaintiff was a resident of the County of Bronx, State of New York.
2. This action falls within one or more of the exemptions set forth in CPLR §1602.
3. The cause of action alleged herein arose in the County of Bronx, State of New York.
4. Upon information and belief, that at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. Upon information and belief, that at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and

controlled the **NEW YORK CITY POLICE DEPARTMENT**, including all the police officers thereof.

6. Upon information and belief, at all times mentioned, Defendants, **P.O. NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503** and **P.O. MATHEW VINZO OF THE 47TH PCT, SHIELD # 31313**, were and are police officer of the Defendant New York Police Department, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

7. That prior hereto on October 31, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller of the City of New York and that thereafter said Comptroller for the City of New York refused or neglected or more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

8. That a 50- H hearing was held on May 16, 2019.

9. That this action is commenced within three years after the Cause of Action arose.

10. At all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was the owner of a 2014 Chevrolet motor vehicle bearing New York State registration number 529614.

11. At all times herein mentioned, Defendant, **P.O. NICHOLAS VANDYKE**, operated the aforesaid motor vehicle.

12. At all times herein mentioned, Defendant, **NEW YORK CITY FIRE DEPARTMENT**, managed the aforesaid motor vehicle.

13. At all times herein mentioned, Defendant, **P.O. NICHOLAS VANDYKE**, managed the aforesaid motor vehicle.

14. At all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, controlled the aforesaid motor vehicle.

15. At all times herein mentioned, Defendant, **P.O. NICHOLAS VANDYKE**, controlled the aforesaid motor vehicle.

16. At all times herein mentioned, Defendant **P.O. NICHOLAS VANDYKE** operated the aforementioned motor vehicle with the knowledge of the Defendant **NEW YORK CITY POLICE DEPARTMENT**.

17. At all times herein mentioned, Plaintiff, **GERARDO AGUILERA**, was the owner of a YAMAHA ATV.

18. At all times herein mentioned, East 233rd Street and Webster Avenue in the County of New York, State of New York, were public roadways, streets and/or thoroughfares.

19. That on October 16, 2016, at East 233rd Street and Webster Avenue in the County of Bronx, State of New York, the motor vehicles of the Defendant were involved in a collision.

20. That as a result of the aforesaid contact, Plaintiff, **GERARDO AGUILERA**, was injured.

21. That the aforesaid occurrence was caused wholly and solely by reason of the negligence of the Defendants without any fault or negligence on the part of the Plaintiff

contributing thereto.

22. That Defendants were negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of the aforesaid vehicles and the Defendants were otherwise negligent, careless, and reckless under the circumstances then and there prevailing.

23. That by reason of the foregoing, Plaintiff, **GERARDO AGUILERA**, sustained severe and permanent personal injuries; and Plaintiff, **GERARDO AGUILERA**, was otherwise damaged.

24. That Plaintiff, **GERARDO AGUILERA**, sustained serious injuries as defined by §5102(d)

of the Insurance Law of the State of New York.

25. That Plaintiff, **GERARDO AGUILERA**, sustained serious injuries and economic loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

26. That Plaintiff, **GERARDO AGUILERA**, is not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse Plaintiff. Plaintiff is seeking to recover only those damages not recoverable through no-fault insurance under the facts and circumstances herein.

27. That by reason of the foregoing, Plaintiff, **GERARDO AGUILERA**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction

AS AND FOR THE SECOND CAUSE OF ACTION

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "27", with the same force and effect as if more fully and completely set forth at length herein.

29. That on October 16, 2016, Plaintiff **GERARDO AGUILERA** was at Webster Avenue near its intersection of 233rd Street, County of Bronx, City and State of New York, when plaintiff was violently and intentionally struck by a New York City Police Department motor vehicle operated by **P.O. NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503 and P.O. MATHEW VINZO OF THE 47TH PCT, SHIELD # 31313** members of the **NEW YORK CITY POLICE DEPARTMENT**, causing Plaintiff **GERARDO AGUILERA** to lose control, crashing of his four wheeler causing Plaintiff to sustain severe injuries.

30. That said occurrence and the result thereof were due solely and wholly by reason of the negligence, carelessness and recklessness of the Defendants, its agents, servants, employees, licensees, designees and/or representatives in ownership, maintenance, management, supervision, charge and control of the aforesaid entity and personnel.

31. That there was no culpable conduct on the part of the claimant contributing thereto.

AS AND FOR A THIRD CAUSE OF ACTION

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "31", with the same force and effect as if more fully and completely set forth at length herein.

33. That on or about October 16, 2016 at approximately 5:50 p.m., while the Plaintiff was lawfully at the above mentioned location, Defendants **P.O.NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503 and P.O. MATHEW VINZO OF THE 47TH PCT, SHIELD # 31313** members of the **NEW YORK POLICE DEPARTMENT** without just cause or provocation, violently and intentionally struck Plaintiff **GERARDO AGUILERA's** four wheeler causing Plaintiff to sustained severe, serious an permanent injuries.

34. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, and willfully had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally committed a violent and/or menacing act which threatened such contact in the plaintiff, causing Plaintiff to suffer several severe injuries including: broken femur bone in left leg, several broken ribs, fracture clavicle, and multiple abrasions among other injuries requiring Plaintiff, **GERARDO AGUILERA** to be admitted at Jacobi Medical Center from October 16, 2016 to November 2, 2016.

35. That by reason of the aforesaid intentional excessive force, assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury in and about his anatomy and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering and otherwise damaged.

36. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have

jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "36", with the same force and effect as if more fully set forth herein.

38. That the defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining of its employee, the above named individuals: in that the said defendant's employees, the above named individual; in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendant failed to exercise due care and caution on its hiring practices, and in particularly, the hiring of the defendant employees who lacked the mental capacity and the ability to function as employees of the aforementioned defendants.

39. That the aforesaid occurrence, to wit: the excessive force, assault and battery and the resulting injuries to the mind and the body therefrom were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

40. That by reason of the aforesaid, the plaintiff was injured in mind and body and still suffers and, upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he has expended and incurred diverse and substantial sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants, employees, including counsel fees and

disbursements, and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "39", with the same force and effect as if more fully set forth herein.

42. That the defendant, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the members of the **NEW YORK CITY POLICE DEPARTMENT**, and impart upon them the knowledge of the proper circumstances under **which a motor vehicle chase** may be made; to control their tempers and exercise the proper deportment, behavior and conduct as representatives of their employers; and in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

43. That the aforesaid occurrence to wit: the excessive force, assault and battery and the Resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

44. That the aforesaid occurrence to wit: the excessive force, assault and battery and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of Defendants **P.O. NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503** and **P.O. MATHEW VINZO OF THE 47TH PCT, SHIELD # 31313**, defendant, its agents, servants and employees without any negligence on the part of the

plaintiff.

45. That the aforesaid occurrence to wit: the excessive force, assault and battery and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant Defendants **P.O. NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503 and P.O. MATHEW VINZO OF THE 47TH PCT, SHIELD # 31313**, its agents, servants and employees without any negligence on the part of the plaintiff.

46. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and, upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

47. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND SIXTH CAUSE OF ACTION

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "46" , with the same force and effect as if more fully set forth herein.

49. That the defendants, their agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the

performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances in that they carelessly and recklessly without provocation and with great force and violence; negligently, carelessly and recklessly used the threat of physical force and actually used physical force upon the plaintiff thereat; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

50. That the aforesaid occurrence, to wit: the excessive force, assault and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

51. Upon the battery and assault of the Plaintiff, Defendants **P.O. NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503 and P.O. MATHEW VINZO OF THE 47TH PCT, SHIELD # 31313**, while acting in concert, intentionally made plaintiff fear for his physical well-being.

52. As a direct and proximate result thereof, plaintiff claims damages for the injuries set forth above.

53. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and, upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick sore, lame and disabled and so remains, and he was incapacitated from his usual occupation by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information

and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

**AS AND FOR THE SEVENTH CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS
(CIVIL RIGHTS VIOLATIONS)**

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "53, with the same force and effect as if more fully and at length set forth herein.

55. That defendants, **P.O. NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503 and P.O. MATHEW VINZO OF THE 47TH PCT, SHIELD # 31313**, failed to properly and adequately ascertain that plaintiff was not in violation of the law and that the plaintiff was detained, prosecuted and imprisoned for an extended period of time, depriving him of his rights and liberties as set forth in the Constitution of the United States of America and of the State of New York, threatened the plaintiff, used extreme force by ramming and hitting Plaintiff with their mark Police car without cause, continued to detain and to imprison the plaintiff without any conduct on the part of the plaintiff to warrant, to wit:

- a) the arrest, detention, prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and County of Bronx, within the scope of their employment and under the authority

of their office as employees of The New York City Police Department for said state.

- b) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful arrest, detention, prosecution and imprisonment of the plaintiff thus depriving him of his freedom and civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,
- c) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any other way control the behavior and performance of police officers, their agents, servants and/or employees; that in their practices in the exercise as a police officer, their exercise of supervisory functions and their failure to enforce the laws of the United States of America, the State and City of New York is evidence of the careless and negligent lack of cautious regard for the rights of the public including the plaintiff herein; in that they exhibited a lack of that degree of due care which prudent and reasonable

- individuals, and reasonable police officers would show in the execution of, and functions of the police officers; and,
- d) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws of the United States of America, the State of New York and the City of New York were carried out carelessly and negligently and without regard for the consequences, so as to display a careless and negligent disregards for the dangers of harm and injury to the citizens of the United State of America, and the State and City of New York including, plaintiff; and,
- e) due to the acts of the defendants, their agents, servants and employees, and the failure of the defendants, to control, discipline, train, monitor, supervise and/or properly hire personnel under their care, supervision and control, and the continued employment of same presents a clear and present danger to the citizens of the United States of a America and the City and State of New York; and,
- f) That the said arrest, detention, prosecution and imprisonment were instituted and procured by the defendant, their agents, servants and employees, under the scope and authority of their office and employment in this action, unlawfully, carelessly and negligently and without any reasonable or probable cause whatsoever therefor. That

the commencement and/or continuation of the revocation of freedom; hearing and criminal proceedings by the said defendants against the plaintiff was without probable cause with actual malice and was ultimately terminated in favor of the plaintiff, and,

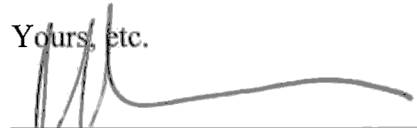
- g) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, permitted the use of policy, and or drafted policy that was violating the Constitutional rights of the above named plaintiff; and, in that each and all of the employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Bronx, and under the authority of their office as police officers for said State, City and County.
- h) That without cause or provocation **P.O. NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503 and P.O. MATHEW VINZO OF THE 47TH PCT, SHEILD # 31313**, intentionally and with willful and intentional disregard for Plaintiff's civil rights, drove their marked police vehicle into Plaintiff while he was on the sidewalk on a four wheeler, causing him to be assaulted, battered and the victim of excessive force.

56. Defendants, **P.O. NICHOLAS VANDYKE OF THE 47TH PCT, SHIELD #: 11503 and P.O. MATHEW VINZO OF THE 47TH PCT, SHIELD # 31313**, did not have probable cause to arrest, detain, assault and batter, prosecute and imprison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

WHEREFORE, Plaintiffs demand judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York
August 12, 2019

Yours, etc.



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
GERARDO AGUILERA
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9046

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

SS:

COUNTY OF BRONX

Gerardo Aguilera, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed Amended Summons & Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: Bronx, New York

August 12, 2019Gerardo Aguilera

Sworn to before me this
day of August, 2019
MICHAEL J. ACHILLE, Notary Public, State of New York
NOTARY PUBLIC, STATE OF NEW YORK
BRONX COUNTY 02BR6035120
Notary Publicate Filed in
Bronx County
Commission Expires 12-27-2021

Index No.
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PCT, SHIELD #: 31313,

Defendant(s).

AMENDED SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.
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TO: